CODE 9 — AGROECOLOGY AND FOOD

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Art. 1 — Subject matter and legal nature

1. This Code governs the agroecological production, processing, preservation and distribution of food as infrastructural commons necessary for the Basket, health, care and the energy continuity of the Community.

2. For the purposes of this Code, agroecological production means:

   a) cultivation;

   b) custody of pollinators and non-exploitative collaboration with animals, within the limits of Article 6-bis;

   c) sustainable wild harvesting;

   d) basic food processing;

   e) food preservation;

   f) composting and management of soil fertility;

   g) management of agricultural water;

   h) custody and reproduction of seeds.

3. The following are inalienable infrastructural commons:

   a) the fertile soil pertaining to Circle 1;

   b) the local infrastructure for the abstraction, storage and distribution of agricultural water, without this entailing appropriation of the water resource as such;

   c) the seed fund of the Food Basket;

   d) essential agroecological knowledge;

   e) the infrastructure of the pollinator refuges and the pollination function.

4. Pollinators are not goods. For the purposes of this Code:

   a) wild populations constitute a non-appropriable ecological common good and are protected by Code 13;

   b) the colonies hosted in the refuges are animal communities in non-exploitative cohabitation pursuant to Article 13.3 of the Constitution: they may not be the object of ownership or of reproductive manipulation, and the harvesting of their products is permitted only under the conditions of Article 6-bis, paragraph 5;

   c) refuges, custodial hives and equipment are common infrastructure.

Protection covers the pollination function, the populations and their habitats.

5. The products of the Basket are commons. The tools necessary for their production are infrastructural commons and are not commodities within the meaning of this Code and of C.1-Annex A. The manufacture, repair and standardisation of the tools are governed by C.1-Annex A, which maintains their classification as non-commodifiable infrastructural commons.

6. This Code pursues the following purposes:

   a) to guarantee federated food sovereignty and the Food Basket;

   b) to favour local, seasonal and regenerative supply chains;

   c) to prevent rent on essential food, fertile soil, seeds, agricultural water and the pollination function;

   d) to guarantee food safety, traceability, biodiversity and animal welfare.

Art. 2 — Principles

1. **Food sovereignty.** Food sovereignty means the federated capacity to guarantee the Food Basket through local production and the federated network, avoiding structural dependencies on external parties and maintaining mutualism and interconnection between Circles. Each Circle 1 shall pursue a basic food production capacity.
2. **Agroecological priority.** Natural fertility, rotations, intercropping, the closing of cycles and regenerative soil management shall take precedence over recourse to intensive methods.
3. **Genetically modified organisms and hybrids.**

   a) For production intended for levels 1–3 of the Basket, the use of genetically modified organisms is prohibited, even where they are not subject to exclusive ownership.

   b) For levels 4–5, proprietary genetically modified organisms and hybrids with technological or contractual sterility that generate proprietary dependency are prohibited.

   c) The use, in levels 4–5, of non-proprietary open-pollinated genetically modified organisms is permitted only subject to a prior derogation by the General Assembly in accordance with the procedure of Article 5, paragraph 7, even where no proprietary dependency exists.
4. **Phytosanitary treatments.**

   a) Only the use of treatments provided for by a Phytosanitary STV in force is permitted.

   b) Persistent synthetic pesticides, systemic products, systemic chemical herbicides and systemic insecticides are prohibited, even if contemplated by a previously applicable STV.

   c) Mechanical, physical and biological treatments, natural extracts and biological control are preferred, where provided for by the STV.

   d) In the event of an extreme phytosanitary emergency, the Assembly may resolve on the temporary use of non-persistent and non-systemic synthetic products, indicating the duration, tracking, Exit Plan and date of the review.

The Phytosanitary STV is a necessary condition for every treatment. The prohibitions of letter b) prevail over the STVs; the derogation of letter d) is temporary and does not permanently modify the STV.

5. **Priority of use.** The hierarchy of Article 32 of Code 1 applies. For agri-food purposes, the uses are:

   a) level 1: Food Basket, life-saving seeds and essential pollination;

   b) level 2: collective canteens and nutrition of frail persons;

   c) level 3: food safety, preservation, protection of the pollinator refuges and animal welfare;

   d) level 4: List A CBO;

   e) level 5: other uses.

In the event of scarcity, reductions shall be applied progressively from level 5 to the higher levels, in compliance with Article 32 of Code 1. For water in the event of scarcity only Article 10, paragraph 8, applies: the minimum water necessary for the survival of animals and pollinators has the same priority as that necessary for the crops of level 1.

6. **Open access to agroecological knowledge.** For every Basket variety, production technique, preservation recipe and STV relating to pollinators for levels 1–4, complete and freely reproducible documentation shall be made available, including the STV provided for by Code 2. It is prohibited to patent the seeds of the Basket and the essential preservation knowledge identified by the STVs.
7. **Transparency.** Each Circle shall maintain an inventory of seeds, a map of agricultural soils, an inventory of pollinator refuges and an aggregated, non-profiling food balance.
8. **Ecological reversibility.** Activities shall avoid soil degradation, favour the maintenance or increase of fertility and contribute to the stability or growth of pollinator populations.

Art. 3 — Agroecological Council

1. Each Circle 1 shall establish an Agroecological Council composed of three to five members with L2 or L3 competences in agroecology, agronomy, seed custody, food preservation, pollinator protection or food safety.
2. Its members shall be drawn by lot in accordance with Article 12-bis of Code 3, shall hold office for one year and may not be drawn by lot again for the same Council until twelve months have elapsed from the end of their term of office.
3. The Agroecological Council:

   a) manages the Food Basket and the Food Storehouse;

   b) draws up and updates the Safety Sheets for processing, preservation and activities at the pollinator refuges;

   c) is responsible for the STVs relating to crops, foods and pollinator refuges in accordance with Code 2;

   d) manages the food balance, soil fertility and pollination activities;

   e) organises L1 training in food safety and pollinator protection;

   f) feeds data into the Dependency Register provided for by Code 15;

   g) coordinates its activity with the Health Council provided for by Code 6, the Energy and Water Council provided for by Code 8, the Habitat and Territory Council provided for by Code 10, the Production Council provided for by C.1-Annex A, the Care Council provided for by Code 12 and the Biodiversity Council provided for by Code 13.
4. The Agroecological Council has no allocative powers over goods outside the agri-food sphere and no disciplinary powers. It may not access individual health data or moderate deliberative or political content.
5. The acts of the Council are divided into:

   a) **bound technical acts:** the implementation of STVs or Safety Sheets already in force, documented and published in accordance with the applicable access levels, without the need for a new resolution;

   b) **discretionary proposals and decisions:** adopted in accordance with the consensus method provided for by Code 3, subject to prior publication of the proposal, a period of at least seventy-two hours for the submission of objections and the recording of the outcome in the minutes.
6. Silence does not constitute consent if the proposal has not been published or if the period for objections has not elapsed.

Art. 4 — Food Basket, stocks and resilience

1. The Food Basket in the strict sense is part of the Sufficiency Basket governed by Code 1. It comprises minimum quantities of food available per person and defined on the basis of requirements, including staple cereals, legumes, seasonal vegetables, fruit, oil, basic preserves, foods for weaning and for frail persons and foods intended for the canteens. The Food Basket is guaranteed on a plant basis; products of animal origin enter it only under the conditions of Article 6-bis, paragraph 4.
2. The Food Basket is defined in quantities and autonomy criteria, including nutritional values and days of stock. Access may not be made conditional on the CBO, on competences or on physical presence.
3. The unavailability of the food necessary for a vital function constitutes a level 1 emergency in accordance with Code 1.
4. Infrastructural stocks, which comprise seeds, stored agricultural water, fertility, compost, containers and food for the animals living with the Community, shall be kept distinct from the Food Basket. Such stocks are managed by means of a federated inventory and the Stocks STV.
5. The resilience thresholds comprise safety margins for pollination, soil fertility, cultivated biodiversity and plant cover. They are indicators of ecosystem resilience and do not constitute a share of the Food

Basket.

6. The resilience thresholds are defined in the Resilience STV, with the opinion of the Biodiversity Council provided for by Code 13, and shall be reviewed at least annually.

7. The minimum list of the Basket and the related thresholds are determined by the Assembly on a proposal from the Agroecological Council, with the opinion of the Health Council on the aspects concerning the nutrition of frail persons. Criteria and quantities are published in the Food Basket STV.

8. The operational fulfilment of requests shall follow, within the limits of the hierarchy of Code 1, this order:

   a) Food Basket, life-saving nutrition and essential pollination;

   b) collective canteens and canteens for frail persons;

   c) food preservation, seeds and protection of the pollinator refuges;

   d) tools for List A CBO;

   e) other reasoned requests.

9. In the event of conflict between the operational order of paragraph 8 and the hierarchy of Article 32 of Code 1, the hierarchy of Code 1 prevails.

Art. 5 — STVs, seeds, soil, sources and coordination of tools

1. Every crop and processing process intended for levels 1–4 and every pollinator refuge shall have an STV in force. The STV shall indicate at least soil, variety, rotation, inputs, irrigation, preservation, risks and limits.

2. The following resources and practices are favoured:

   a) free and reproducible seeds;

   b) community compost;

   c) mature manure, under the conditions of Article 6-bis, paragraph 4;

   d) green manure;

   e) local biofertilisers;

   f) reclaimed water, where it is safe and permitted;

   g) locally adapted varieties;

   h) wood from sustainable local supply chains for the construction of custodial hives and refuges.

3. For level 4–5 activities, a documented verification of the possibility of recovering surpluses, reusing food waste and repairing agricultural equipment and refuges is mandatory before any new acquisition is made. For levels 1–3 the verification is strongly preferred, unless reuse would compromise health safety, as certified by the Health Council. The verification shall be recorded in the STV.

4. Self-production of tools is encouraged where validated L2 competences and standard repairable implements are available.

5. The division of competence with C.1-Annex A is as follows:

   a) C.1-Annex A governs the manufacture, repair, standardisation and inventory of hand tools, light ploughs, custodial hives, dryers, mills, oil mills, presses, irrigation tools and food containers;

   b) such tools retain their classification as non-commodifiable infrastructural commons;

   c) this Code governs the agroecological use of the tools, the related suitability criteria, the crop STVs and the Safety Sheets for use;

   d) this Code does not confer competence over the production of tools, which is reserved to C.1-Annex A.

6. For levels 4–5 it is prohibited to introduce new systems that depend structurally on:

   a) proprietary genetically modified organisms;

b) hybrids with technological or contractual sterility;

c) proprietary inputs that cannot be reproduced locally.

7. A derogation from the prohibitions of paragraph 6 may be resolved by the General Assembly by qualified majority and shall provide cumulatively for:

   a) a documented technical statement of reasons showing the impossibility of an alternative;

   b) a duration not exceeding twelve months for each resolution;

   c) a compensatory measure to protect free seeds and local pollinators;

   d) a binding Substitution Plan;

   e) a review at least every six months.

8. The use of non-proprietary open-pollinated genetically modified organisms for levels 4–5 is permitted only by means of the derogation of paragraph 7, even where no proprietary dependency exists.

9. The overall duration of the dependency authorised pursuant to this Article may not exceed twenty-four months, except in an extreme emergency resolved in accordance with Code 3. Article 2-bis of Code 6 applies only where the emergency is of a collective health nature.

Art. 6 — Fields, federated network, territory and measurement

1. Each Circle 1 shall activate a basic production capacity, scalable and sectionable, which comprises, depending on local characteristics:

   a) proximity vegetable gardens;

   b) areas for cereals and legumes proportionate to requirements;

   c) orchards;

   d) spaces for the custody and reproduction of seeds;

   e) composting units;

   f) a kitchen for processing and preservation;

   g) a store for the Food Basket;

   h) a pollinator refuge, in accordance with Article 6-bis and Code 13.

2. The designated use of soils, land take, ecological corridors, buffer zones for pollination and the georeferencing of pollinator refuges are governed by Code 10.

3. This Code refers to Code 10 for the territorial map and governs the agricultural function within the areas designated for that use.

4. The Confederation guarantees a minimum federated coverage of advanced competences and infrastructure, comprising, according to requirements, a seed bank, nursery, dryer, mill and oil mill. The coverage shall ensure every Circle 1 effective access within its own Circle 2, as a rule with one provision for every three or four Circles 1 of which it is composed, sized on the basis of population and territory.

5. Access to the federated infrastructure is bookable and managed by means of a common inventory.

6. Dispersed micro-production, such as vegetable gardens on balconies or roofs, shared building gardens and educational pollinator refuges, shall be registered with the Agroecological Council and shall comply with the applicable STV and Safety Sheet.

7. Measurement is permitted only for technical purposes of food safety, food balance, soil fertility, verification of the Basket and the state of the pollinator refuges. Data shall be aggregated by Circle 1 or by Circle 2.

8. Individual profiling of behaviour is prohibited. Code 7, Article 2.2, and the related rules on minimisation and access apply.

Art. 6-bis — Animals and pollinators

1. **General principle.** Non-human animals are sentient, free and protected beings; they are not commodities or means of production, pursuant to Article 13 of the Constitution. The rearing of animals for purposes of exploitation, slaughter, killing and any practice that causes pain, fear or deprivation are prohibited. Only the non-exploitative collaboration of paragraph 3 and the harvesting without harm of paragraphs 4 and 5 are permitted.

2. In the event of a conflict of interpretation between the agri-food function and animal welfare, the welfare parameters established by Code 13 prevail. In case of doubt the activity is not permitted. The distribution of water in the event of scarcity follows Article 10, paragraph 8.

3. **Collaboration in work.**

   a) An animal may help the Community only in light work: soil tillage and woodland management where the use of machines would degrade the soil or biodiversity, light transport, mowing and management grazing. Use for level 4–5 activities, competitions, entertainment or recreational draught is excluded.

   b) Collaboration is permitted only in activities compatible with the species, temperament and condition of the individual animal. Tools and methods that act through pain or fear are prohibited. An animal that shows refusal, fatigue or distress shall be left free from the activity.

   c) The load, the maximum daily and weekly hours, the minimum and maximum age, rest periods, climatic thresholds and signs of distress are defined in the Collaborating Animals Welfare STV, in accordance with Code 2. The STV is validated jointly by the Agroecological Council and the Biodiversity Council, with the opinion of the Health Council; the welfare parameters are approved by the Biodiversity Council with the authorisation of Article 13.3 of the Constitution, pursuant to Article 3, paragraph 5, of Code 13.

   d) Every animal shall have an individual Welfare Sheet, a register of hours and a periodic veterinary check. In the absence of a Sheet in force the collaboration shall be suspended without delay; care of the animal remains guaranteed.

   e) Water, shade, shelter, proportionate rest, rotation of tasks and a social life appropriate to the species are guaranteed. Work in extreme climatic conditions is prohibited.

   f) An animal that can no longer or must no longer collaborate is entitled to retirement and to care for its whole life, in the Community or in a refuge sanctuary. It may not be transferred for consideration or put down for convenience.

   g) Animals shall not be made to reproduce or acquired in order to obtain labour power. The animals that collaborate are those already present, those taken in and those born spontaneously in the Community.

   h) No function of levels 1–3 may depend exclusively on the work of animals: for each one a way of performing it without them shall be provided.

   i) Assistance to persons by animals is governed by Article 7 of Code 13.

4. **Products without harm.**

   a) It is permitted to harvest only what the animal produces spontaneously and what exceeds its own needs and those of its offspring and of the colony, where the harvesting causes no harm: in particular manure, wool whose shearing is necessary for the animal's welfare, unfertilised eggs laid spontaneously, surplus milk and, for bees, what is provided for in paragraph 5.

   b) Killing, any taking that entails pain, fear, deprivation or a reduction in lifespan, separation from offspring, induced reproduction, selection aimed at productivity and increasing the number of animals for harvesting purposes are prohibited.

   c) The conditions and limits of each harvesting are defined in the Welfare Sheet and in the applicable STV, approved by the Biodiversity Council pursuant to Article 3, paragraph 5, of Code 13. In case of doubt the harvesting is not permitted.

   d) Harvesting does not constitute a production objective and is not planned into the Basket

requirement. What is harvested shall be delivered to the Storehouse and distributed, when available, with priority to clinical needs and to frail persons.

e) Soil fertility shall be ensured as a priority by compost, green manure, rotations and plant-based biofertilisers.

5. **Pollinators and custodial hives.**

   a) Each Circle 1 shall pursue the presence of pollinator refuges: flowering plants, hedgerows, nesting habitats and, where compatible with local conditions, custodial hives with locally adapted bees. The protection of pollination takes priority over any harvesting.

   b) Honey, wax and propolis may be harvested from the custodial hives only in excess of the reserve necessary for the colony, determined with a prudential margin by the Pollinators STV. Total removal is prohibited.

   c) The following are prohibited: artificial feeding, except for a rescue intervention certified by the Biodiversity Council for the time strictly necessary; artificial insemination and the killing of queens; wing clipping; migratory beekeeping; persistent synthetic acaricides; lines subject to patent, licence or technological sterility.

   d) Intervention on colonies is permitted for rescue, health protection, prevention of risks to persons and harvesting pursuant to letter b), in accordance with the Pollinators STV. The STV is adopted in accordance with Code 2, with the approval and the opinion of the Biodiversity Council provided for by Article 6, paragraph 6, of Code 13 and with the mandatory opinion of the Habitat and Territory Council.

   e) The Pollinators STV defines the reserve necessary for the colony, the distances, the buffer zones and the radius of protection from treatments, in coordination with Code 10.

   f) Every refuge shall have a Safety Sheet, shall be entered in the inventory and shall be georeferenced in accordance with the access rules of Code 10. Pollination data shall be aggregated and non-profiling, in conformity with Code 7, Article 2.2.

   g) The Agroecological Council shall record dependencies on external pollination in the Dependency Register of Code 15.

   h) L1 training is mandatory in order to work at the custodial hives; L2 is required for harvesting and for rescue interventions on colonies.

6. **Animals present at accession.** Working or farm animals and managed colonies present on the date of the Community's accession shall remain with it in non-exploitative cohabitation or collaboration where the conditions of this Article are met, as verified by the Biodiversity Council within the time limit of Article 10, paragraph 3, letter d); otherwise they shall be received in the refuge sanctuaries provided for by Code 13, pursuant to Article 13.4-bis of the Constitution. They may not be transferred for consideration, slaughtered, put down or made to reproduce for purposes of use. Every prohibited practice shall cease without delay.

7. **Foods of animal origin.** The Food Basket is guaranteed on a plant basis and is nutritionally adequate without products of animal origin, including the necessary supplementation; the Agroecological Council and the Health Council are answerable for this. Meat and any food that requires the killing of or harm to an animal shall not be produced in the Confederation. Foods harvested pursuant to paragraphs 4 and 5 shall be distributed in accordance with paragraph 4, letter d). During the transition, the other foods of animal origin shall be progressively replaced in accordance with a Food Substitution Plan approved by the Assembly with the opinion of the Health Council, pursuant to Article 13.5 of the Constitution. The foods and medical aids required by individual clinical needs certified in accordance with Code 6 remain guaranteed, until adequate alternatives are available.

8. **Coordination.** The Agroecological Council shall coordinate activities:

   a) with the Biodiversity Council of Code 13 for animal welfare parameters and for sanctuaries;

   b) with the Health Council of Code 6 for food safety, nutrition and zoonoses;

   c) with C.1-Annex A for equipment;

   d) with Code 10 for territorial matters.

9. **Measurement and violations.** Measurement is permitted only in order to verify welfare, hours of collaboration, the state of the colonies and the quantities harvested. Violation of the provisions of this Article shall be assessed in accordance with Code 4. The non-compliant activity shall be suspended without delay, the animals involved shall be made safe and the function shall be performed without animals.

Art. 7 — Safety, nutrition and training

1. No processing or preservation activity and no intervention at the pollinator refuges may be carried out without a Safety Sheet in force. For collaboration with animals and for interventions on colonies, a Welfare Sheet in force in accordance with Code 13 is also required.
2. The Agroecological Council validates the technical safety aspects of the activity. The Health Council gives the mandatory opinion on health risks, preservation, allergens, the nutrition of frail persons, stings and zoonoses. The Biodiversity Council gives the mandatory opinion on animal welfare aspects.
3. Mandatory opinions do not transfer to the Council consulted the competence for the technical validation of the act, which remains with the Agroecological Council, except for the Collaborating Animals Welfare STV and the Pollinators STV provided for by Article 6-bis, paragraph 3, letter c), and paragraph 5, letter d), for which the Biodiversity Council approves the welfare parameters pursuant to Article 3, paragraph 5, of Code 13.
4. PPE and equipment for food safety and for interventions at the pollinator refuges are commons, supplied free of charge, maintained and tracked by the competent Storehouses in accordance with Codes 1, 6 and 14. Their absence entails the suspension of the activity concerned.
5. L1 training in food safety and pollinator protection is mandatory for access to the processing kitchens and to the custodial hives. L2 is required for the management of fields, of advanced preservation and of rescue interventions on colonies. L3 is required for agroecological design and the validation of STVs.
6. Anyone who detects an immediate risk to health, animal welfare or the survival of a colony may interrupt the activity and report it, and may not suffer detriment for having acted in good faith. Codes 6 and 14 apply.

Art. 8 — Agroecological Dependency Register

1. The Agroecological Council shall feed data into the Dependency Register provided for by Code 15 and shall distinguish at least:

   a) **material dependencies:** seeds, fertility or other essential materials coming from outside;

   b) **technological dependencies:** proprietary inputs, closed systems, non-reproducible varieties, patents or technological sterility;

   c) **water, logistics or pollination dependencies:** water, supply chains, storage or pollination services not available in the Confederation.
2. Every critical dependency shall be accompanied by an Exit Plan with a person responsible, an objective, intermediate measures and a fixed final deadline. Dependencies relating to the Basket, seeds and pollination have priority.
3. Food autonomy shall be subject to a federated audit, at least annually, by independent L3 persons selected by sortition.
4. The audit shall be conducted in accordance with the following rules:

   a) the auditors shall be drawn by lot from a federated list of L3 competences in agroecology, biodiversity and health, kept by the Guarantee Circle in accordance with Code 4;

   b) no audit shall be carried out on the Circle to which the auditor belongs or on a Circle in which the auditor has carried out activity in the last twenty-four months;

   c) the office shall not exceed thirty days;

d) the report shall be published in accordance with the applicable access levels; the Circle concerned has fifteen days in which to submit observations;

e) an appeal may be lodged with the Guarantee Circle in accordance with Code 4;

f) if a critical dependency is established, a binding Exit Plan may be prescribed within the limits of the competences conferred by Codes 4 and 15;

g) findings, challenge, remedies and consequences shall be coordinated with Codes 4 and 15.

Art. 9 — Prohibitions and guarantees

1. It is prohibited to:

   a) generate rent on the Food Basket, on the seeds of the Basket, on common fertile soil, on the essential infrastructure for agricultural water, on the pollinator refuges or on the pollination function;

   b) impose paywalls on the STVs for life-saving seeds, Basket preserves, pollinator protection or plant health;

   c) claim or maintain, within the Confederation, patents or other titles of exclusive appropriation over the seeds of the Basket or over the essential preservation knowledge identified by the STVs for levels 1–4;

   d) accumulate seeds or food individually beyond the technical limit resolved, where this compromises the availability of the Basket;

   e) deny Basket food as a sanction;

   f) transfer to a party external to the Confederation control of the seed bank, of the Basket fields or of the pollinator refuges;

   g) use treatments prohibited by Article 2, paragraph 4, letter b), which admit no derogation; the products of letter d) of the same paragraph are used only under its conditions;

   h) kill or mistreat animals, or use them or harvest their products outside the conditions of Article 6-bis;

   i) artificially inseminate or kill queens or introduce lines of bees subject to proprietary restrictions.

2. The prohibition referred to in paragraph 1, letter c), concerns the exclusive appropriation of goods and knowledge within the confederal system.

3. Violations shall be dealt with in accordance with Code 4. The suspension or deactivation of the non-compliant function shall be proportionate and accompanied, where technically possible, by the continuity of the level 1–3 functions in accordance with the Safety Sheet.

4. For critical or vital functions, the suspension shall be accompanied, where possible, by a continuity procedure and by a compliant substitute function.

5. An appeal may be lodged with the Guarantee Circle within fourteen days on grounds of procedural defect, manifest technical unreasonableness, discrimination or disproportion. Code 4 applies.

Art. 10 — Transitional provisions and links

1. This Code is coordinated with:

   a) Code 1, Articles 18 and 19 for the Basket and scarcity and Article 32 for the hierarchy of priorities;

   b) Code 2, for the STVs;

   c) Code 3, for resolutions;

   d) Code 4, for Guarantee, appeals and remedies;

   e) Code 5, for L2 and L3 competences in agroecology and pollinator protection;

   f) Code 6, for health and nutrition;

   g) Code 7, Article 2.2, for the Network and non-profiling;

h) Code 8, for energy and water;

i) C.1-Annex A, for production and workshops;

j) Code 10, for habitat and territory;

k) Code 12, for the care of frail persons;

l) Code 13, for biodiversity and sanctuaries;

m) Code 14, for general safety;

n) Code 15, for the Dependency Register.

2. Within six months of entry into force, each Circle 1 shall:

   a) carry out a census of the soils, vegetable gardens, seeds, managed bee colonies and animals present;

   b) activate a minimum basic production with provisional STVs and minimum Safety Sheets;

   c) guarantee the minimum Food Basket, including by means of the recovery of surpluses.

3. Within twelve months, each Circle 1 shall:

   a) establish the Agroecological Council;

   b) activate a minimum seed bank, a pollinator refuge and the federated inventory;

   c) adopt the definitive STVs for levels 1–2;

   d) prepare, with the Biodiversity Council, the verification of the conditions of the animals present, the related Welfare Sheets, the reception plan for those that cannot remain and the Safety Sheets of the pollinator refuges;

   e) activate a node of the Federated Agroecological Network in accordance with Code 7;

   f) coordinate the transition with Code 8, C.1-Annex A and Code 10.

4. In the event of a documented overlap of the transitional burdens relating to Codes 8, 9 and 10, the Assembly may grant a reasoned extension, not exceeding six months, for the activation of the pollinator refuge and of the seed bank. The extension shall be accompanied by a binding plan and may not interrupt the continuity of the Basket.

5. If the time limit of paragraph 3 expires without the mandatory infrastructure having been activated, the matter shall be dealt with in accordance with the guarantee procedures of Code 4, with a binding Compliance Plan and measures to ensure the continuity of the Basket.

6. Paragraph 9 applies to already existing functions, management methods, livestock farms or apiaries that violate Article 9 or Article 6-bis.

7. Anyone managing fields on the date of entry into force may retain a provisional validation in order to guarantee continuity:

   a) for up to six months for functions corresponding to L3;

   b) for up to twelve months for functions corresponding to L2.

The conditions of Article 10 of Code 5 apply.

8. **Agricultural water and water in the event of scarcity.** Abstraction, storage and distribution intended for agriculture shall be coordinated with Code 8 and with Code 10, which governs territorial designations. In the event of scarcity the available water is distributed according to the following priorities, which apply to every use of water, including those governed by Codes 8 and 13:

   a) drinking water for human use and for health and care services, within the guaranteed minimum quota of Article 4-bis, paragraph 3, of Code 8;

   b) with equal priority, the minimum water necessary for the survival of the animals that live with the Community, including those received in sanctuaries, and of pollinators, and the minimum water necessary to keep the crops intended for level 1 of Article 2, paragraph 5; if the water is not sufficient for both, it is distributed in proportion to the minimum need of each;

   c) all other uses, which are reduced first.

The minimum need of letter b) is established by the Energy and Water Council with the Agroecological Council and the Biodiversity Council. Before an animal is left without the water necessary for survival, the Biodiversity Council requests through the Pool of Code 15, as an immediate vital need within the meaning of its Article 8, paragraph 2, letter a), the missing water or the transfer of the animal to another Community or to a sanctuary that has the necessary water; the transfer is necessary for welfare within the meaning of Article 4-bis, paragraph 2, of Code 13. Until the Balance provided for by Code 15 is active, the transfer is attempted directly with another Community or with a kindred external body, such as a refuge or a sanctuary, by written agreement. To prevent scarcity, the number of animals kept or received by the Community, including sanctuaries, and of the pollinator colonies kept is planned by the Biodiversity Council, with the Energy and Water Council, on the basis of the water available in dry years; animals to be received beyond that number are received through other Communities or sanctuaries that have the necessary water; animals already received are transferred only pursuant to Article 4-bis, paragraph 2, of Code 13, with the attestation provided for therein. For the purposes of Article 32 of Code 1, the abstraction and distribution of the water of letters a) and b) are vital emergencies of letter a) of its paragraph 1 and follow the order of this paragraph.

9. **Existing non-compliant functions.** Already existing functions, management methods, livestock farms and apiaries that violate Article 9 or Article 6-bis shall be brought into compliance within ninety days. For livestock farms and apiaries, compliance consists in the cessation without delay of every practice prohibited by Article 6-bis; the verification provided for by its paragraph 6 is concluded within the time limit of paragraph 3, letter d), and until then the animals remain with the Community without collaborating. If bringing a function into compliance is not technically possible, the deactivation procedure shall be initiated within the same time limit, comprising:

    a) verification of compliance;

    b) documented establishment of the technical impossibility of compliance;

    c) initiation of the deactivation procedure;

    d) a Substitution Plan with a person responsible and a fixed final deadline.

If immediate deactivation compromises a vital function of level 1 or 2, the Assembly shall approve within ninety days a binding plan for progressive substitution or deactivation, with a fixed deadline and continuity of the Basket.

10. **Exit plans.** Within twenty-four months the Exit Plans from critical dependencies relating to seeds and inputs of the Basket shall be completed, in accordance with the Dependency Register of Article 8 and Code 15. Each plan shall indicate a fixed final deadline.